

PROCEEDING OF WARNING

Of the proceeding instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) on February 1, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reason for the complaint is the publication on the social network Google Maps of the name and dosage of the medication prescribed in the medical prescription that he presented at the pharmacy located at ***ADDRESS.1. The respondent - pharmacist co-owner of that pharmacy - responded to a negative comment made by the complainant about the pharmacy on the social network and included in his response the name and dosage of the medication that appeared on the prescription.

The complainant states in his complaint:

"I went to this pharmacy on February 1, 2023, at 3 PM, looking for a medication. I did not feel well attended due to the lack of courtesy of the staff. I left a negative review on Google Maps and the person representing the pharmacy published the name and dosage of the medication I requested." He provides a screenshot of Google Maps that incorporates some of the comments published on that social network. The heading of the document states "***ADDRESS.1". Below, the photograph of the profile that the complainant has on Google Maps is visible, along with his name and one surname. It is then indicated "3 reviews" and a star is marked. The comment published on the social network by the respondent, in response to the one made by the complainant about the pharmacy, reads: "XXXXXXXXXX, incomplete prescription. My dear sir. Although you only put one star, without indicating the reason, something I consider very rude. For anyone interested, you tried to buy a XXXXXXXXXX with a prescription that was not complete, and I am very sorry, it is illegal to sell this product like that. And you should have known that, even though you pretended not to."

The response of the complainant to that comment from the respondent is also included:

"Responding to the response. First, the prescription was complete, and if it were not, there are ways to say it. Second, according to data protection regulations, a pharmacy cannot publish that I am using a certain medication. I will take the appropriate formal measures regarding this situation."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification, which was sent to the respondent in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on April 5, 2023, as evidenced by the acknowledgment of receipt in the file.

The respondent requests in a document dated May 3, 2023, that the complaint be declared inadmissible and that the file be archived. He argues that the complaint should be inadmissible "Given the clear absence of capture, processing, and/or dissemination of personal data of the complainant, particularly health data, and considering the abusive and reactive nature of the complainant who files a manifestly unfounded complaint and in the absence of any infringement, in the terms of Article 65.2 of the aforementioned Organic Law 3/2018."

He makes the following statements:

- Regarding the company "FARMACIA COLLBLANCH, CB": that it is the owner of the pharmacy located at ***ADDRESS.1. The community of goods (hereinafter C.B.) is constituted by two partner members, the respondent and Ms. C.C.C., both pharmacists.

- Regarding the events that occurred, he declares:

"[...] when Mr. [the complainant] entered the pharmacy, [...] upon handing me the prescription in question to dispense the medication prescribed there, I verified that it was indeed a XXXXXXXXXX,

through a private prescription, which, along with his nervousness, raised certain suspicions. Thus, when I indicated that I did not find the prescription clear and that I wanted to verify it, his first reaction was one of restraint - I suppose he did not expect it - but as soon as I left it on the counter to approach the computer for a first check, he picked it up, told me I was rude and ill-mannered, and ran out the door.

He never returned. [...] Everything happened so quickly that I could not take note of any data, neither to verify it in the doctors' database nor, even less, to register it in any database, which prevented me from verifying the validity of that prescription and, even, if necessary, filing the appropriate complaint with the police. In fact, I could not even check if the recipient of the medication listed on the prescription was Mr. [the complainant] himself or a third party, as I did not have time."

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to ask him to identify himself. Thus, as I have said, I did not know the name of Mr. [the claimant] until I received the communication from this AEPD."

"[...] the next day, by chance, I saw that there had been a poor rating of the pharmacy on Google Maps [...] what struck me the most was identifying in the small photo next to the rating the image of the person who had come the day before. The name that appeared next to the photograph, "A.A.A." did not ring a bell at all, so I concluded that it did not correspond to the name on the prescription which, although I did not remember what it was, I was convinced was more common since it did not catch my attention. Faced with this fact, I internally felt persuaded that I had overlooked an irregular prescription and a possible offender, so assuming that "A.A.A." was a pseudonym, I thought it was my duty to alert that a prescription was being circulated that was very likely falsified, which is why I indicated what is stated in the Post reproduced in the complaint, namely:

"he has tried to buy a XXXXXXXXXX with a prescription that was not complete, and I am very sorry, it is not legal to sell this product."

- He denies that there has been any processing of personal data of the claimant, neither when the claimant visited the pharmacy nor subsequently when he responded to the comment published on Google Maps.

He insists that he has not identified the claimant. It has been the claimant who has identified himself with his name through the review published on the social network. He also insists that he has not processed any health data in the terms in which that concept is defined in Article 4.15 of the GDPR, as he has never stated that the claimant was the recipient of the medication but has limited himself to saying that the claimant had tried to acquire it. It has been the claimant himself, in his response to his reply - when he says "that according to data protection regulations, a pharmacy cannot publish that I am using a certain medication" - who implies that the requested medication was for him.

The following are some excerpts from the document that the respondent sent to the Subdirectorate of Inspection of the Agency in response to the transfer of the complaint:

- "As can be seen from both the excerpt and the entire text of the Post, I neither mention the name of the person who came to the pharmacy (which I did not know at that time) nor the name in favor of whom the prescription was issued and, therefore, even less that the person who came to the pharmacy, namely Mr. [the claimant], took that medication. I only indicated that he wanted to buy it."

- "In no case has there been any capture of data of any kind and, even less, processing of personal data of Mr. [the claimant] in the terms of Article 1 and 4, paragraph 2) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, since, when he was in the pharmacy, I did not have the material time to register anything and even less to process his data or those of the person in whose name the prescription was issued, especially since Mr. [the claimant] never identified himself."

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"[...] under no circumstances can it be considered that I processed or disseminated data by responding to your Post on Google Maps in the terms of Article 4, paragraph 2 cited, since I neither published your name or identifying data - and yours were manifestly insufficient, as they only included your two first names but not your surnames - as I did not know them until I was notified of the file. And finally, even less have I processed health data of the same with the publication of the Post, since in the terms of Article 4, paragraph 15 of the Regulation, health data is only considered as: "personal data relating to the physical or mental health of a natural person, including the provision of health care services, which reveal information about their health status."

(The underlining is ours)

Attached to your writing are the following documents:

- The cover of "Data Protection Documentation." This is a document prepared on October 3, 2019, which informs that the adaptation has been carried out by TAXFARMA ASESORES, S.L., and that the data protection officer is Farmacia Collblanc, with CIF ***CIF.1. It includes an index of the documentation that integrates it (the documentation itself is not provided):

"1) Security document; 2) RAT; 3) Risk analysis; 4) User rights; 5) Security breaches; 6) Corporate clauses; 7) Web clauses; 8) Treatment contracts; 9) Employee commitment; 10) User manual; 11) Checklist."

- The Risk Analysis Report

- The "Security Document Farmacia Collblanc, C.B."

THIRD: On May 1, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant is admitted for processing.

FOURTH: On January 22, 2024, the Director of the Spanish Agency for Data Protection agrees to initiate a warning procedure against the respondent for the alleged infringement of Articles 9.1 and 5.1.c) of the GDPR, both classified in Article 83.5.a) of the GDPR.

FIFTH: The notification of the initiation agreement was carried out in accordance with the rules established in the LPACAP and, as stated in the acknowledgment of receipt in the file, was collected by the respondent on January 30, 2024.

SIXTH: On February 12, 2024, the Agency received the written allegations from the respondent in which, in addition to expressing their willingness to comply with the requirement made by the opening agreement, they request "the filing of this procedure." They argue the following:

i. That, although they do not agree with some of the statements contained in the opening document of the procedure, they are "fully in agreement with the need for my publication on Google Maps to no longer be accessible to third parties, hence it is currently no longer accessible by my decision."

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They provide, as attached document 1, a screenshot with the search result in the Google Maps application by the name of the establishment: "Farmacià C/ de ***DIRECCIÓN.1."

In it, in addition to the photograph and the name of the complainant, the date February 1, 2023, and the following text appear:

"Responding to the response. First, that the prescription was complete and if it were not, there are ways to say it. Second, that according to data protection regulations, a pharmacy cannot publish that I am using a certain medication. I will take the appropriate formal measures regarding this situation."

Next, it states: "Pharmacy" "Owner" and a space for their comments that is blank and includes only the following legend: "Respond publicly."

The comment that the respondent made on the social network in response to that of the complainant is no longer present.

- ii. They add that they acted in good faith and acknowledge that it was a “mistake” to “attempt to prevent the circulation of an apparently illegitimate prescription by such means.”
- iii. They reiterate their willingness to adopt the measures and recommendations that the Agency conveys to them.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following to be accredited in the present procedure:

PROVEN FACTS

FIRST: The complainant submitted a complaint to the Agency on February 1, 2023, stating that on that day they went to the pharmacy on ***DIRECCIÓN.1 looking for a medication and, since they did not feel well attended, they left a negative review on Google Maps, after which “the person representing the pharmacy published the name and dosage of the medication I requested.”

SECOND: A screenshot from the Google Maps application related to “***DIRECCIÓN.1” is in the file - provided by the complainant.

In it, the profile picture of the complainant on the social network appears first, followed by their name and one surname (A.A.A.). Next, it indicates: “3 reviews.” It then states:

“15 minutes ago” and the following comment:

“Responding to the response. First, that the prescription was complete and if it were not, there are ways to say it. Second, that according to data protection regulations, a pharmacy cannot publish that I am using a certain medication. I will take the appropriate formal measures regarding this situation.”

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Below is the text: “Response from the owner” “42 minutes ago” and the text of a review written in English (Google translation). Below is this review written in Spanish:

“(Original)XXXXXXXXXX, incomplete prescription. My dear sir. Although you only gave one star, without indicating the reason, something I consider very rude.

For anyone who may be interested, he tried to buy a XXXXXXXXXX with a prescription that was not complete, and I am very sorry, it is illegal to sell this product like that. And you should have known this even though you pretended not to.”

THIRD: The respondent acknowledges in their response to the transfer of the complaint that it was he who attended to the complainant when he came to the pharmacy and that it was he, also, who wrote the response on Google Maps in which the name of the medication was published. He states in the third allegation of his document (page 2 of the submitted document):

<>

<< [...] I thought my obligation was to alert that a prescription was being circulated that was very likely falsified, which is why I indicated what is stated in the Post reproduced in the complaint, that is: “he tried to buy a XXXXXXXXXX with a prescription that was not complete, and I am very sorry, it is illegal to sell this product.”>>

(The underlining is ours)

FOURTH: The respondent states in their response to the transfer of the complaint that through the photograph published on Google Maps, he identified the complainant as the person who requested the medication whose name he published on the social network. He states in the third allegation of his document, last paragraph, page 2 of the submitted document:

<< [...] the next day, by chance, I saw that a bad rating had been made of the pharmacy on Google Maps, which surprised me as it is not usual. The fact is that what shocked me the most was identifying in the small photo next to the rating the image of the person who had come the day before. [...]>>

(The underlining is ours)

FIFTH: The respondent declares in their allegations to the initiation agreement of the procedure:

<< [...] I share and fully agree on the need for my publication on Google Maps to no longer be accessible to third parties, which is why it is currently no longer accessible by my decision.>>

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He provides with his allegations to the initiation agreement a screenshot of the Google Maps application related to the aforementioned pharmacy that evidences that he has deleted the comment in which he informed of the name of the medication.

In the screenshot he provides, after the photograph and the name of the complainant, the date of February 1, 2023, and a box for comments can be seen, among which is the one made by the complainant in response to the comment of the respondent. It is then indicated: "Pharmacy" "Owner." And in the space designated for comments, this legend: "Respond publicly." The comment that mentioned the name of the medication prescribed in the prescription has disappeared.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

On the data controller

The complaint that gives rise to this procedure was directed against the pharmacy located at ***ADDRESS. However, the owner of the pharmacy is the company "FARMACIA COLLBLANCH, CB," a community of goods constituted by two partners, Ms. C.C.C. and the respondent, both pharmacists. C/ Jorge Juan, 6

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Article 4 of the GDPR, paragraph 7, defines the "data controller" as "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; [...]".

The C.B. is not a legal entity, and therefore cannot hold rights and obligations. Broadly speaking, it is an association of natural persons to facilitate the management and administration of a business project or a common asset without its nature being altered by the fact that the State Agency for Tax Administration (AEAT) assigns a tax identification number to the C.B.

In the statements made by the respondent in their response to the transfer from the General Subdirectorate of Inspection, they state that they are a co-owner, along with Ms. C.C.C., of the company "***EMPRESA.1." and also acknowledge that it was they who attended to the claimant when they visited the pharmacy and who responded to the comment that the claimant published on Google Maps about the pharmacy. In their response, the respondent informed about the name of the medication and the dosage prescribed in the medical prescription that the claimant presented to them. Thus, the respondent, co-owner of the pharmacy, is the one who has decided on the purposes and means of the processing of personal data that has given rise to the present procedure and, consequently, is considered the data controller.

III

On the existence of personal data processing

The respondent categorically denied in their response to the transfer of the claim that they had processed personal data of the claimant, neither when the claimant visited the pharmacy nor subsequently when they responded to their comment on Google Maps.

They also insist that they did not process any health data, since they never stated that the claimant was the recipient of the medication, but merely said that the claimant had attempted to acquire the medication.

The legal definition of personal data and processing is set out in Article 4 of the GDPR, paragraphs 1 and 2, which provide:

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“1) ‘personal data’: any information relating to an identified or identifiable natural person (‘the data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.”

“2) ‘Processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or any other form of making available, alignment, combination, restriction, erasure, or destruction.” (Emphasis added)

In defense of their claim that they did not carry out personal data processing, the respondent argued in their response to the transfer: “I do not mention the name of the person who came to the pharmacy, nor the name in favor of whom the prescription was issued.”

Despite the respondent's denial of admitting that through the comments they published on Google Maps, in which they informed about the name of the medication and the dosage prescribed in the prescription presented by the claimant, they carried out personal data processing, it should be emphasized, on the one hand, that according to Article 4.1 of the GDPR, personal data is “any information” concerning an “identified or identifiable” natural person and, on the other hand, that the respondent published their comment on a social network in response to a previous comment from a natural person who identified themselves on that social network by their name, a surname, and their photograph.

Indeed, the respondent stated in the document they sent to the Inspection Subdirectorate of this Agency: “[...] I saw that there had been a misclassification of the pharmacy on Google Maps [...] what struck me most was identifying in the small photo next to the review the image of the person who had come the day before.” (Emphasis added)

It should also be added that the comment the respondent published on the social network included, on two occasions, the name and dosage of the medication prescribed in the medical prescription that the claimant presented when they visited their pharmacy on February 1, 2023.

By publishing on the social network Google Maps the name and dosage of the prescribed medication, the respondent carried out a processing – a “use” – of personal data of the claimant, who was identified on the social network through various elements, such as their name, surname, and photograph.

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IV

Applicable Provisions

The GDPR regulates in its Article 5 the principles governing the processing of personal data and

provides in paragraph 1:

“1. Personal data shall be:

[...]

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);

[...]”

Article 5.2 of the GDPR states: “The data controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it (‘proactive accountability’)”

Article 9 of the GDPR regulates the “Processing of special categories of personal data” and provides:

“1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply where one of the following applies:

a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union or Member State law provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;

b) the processing is necessary for compliance with a legal obligation to which the data controller is subject or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

c) the processing is necessary to protect the vital interests of the data subject or of another natural person, in the event that the data subject is incapable of giving consent;

d) the processing is carried out in the course of legitimate activities by a foundation, association or any other not-for-profit body with a political, philosophical, religious or trade union aim, provided that the processing relates solely to the members of the body or to persons who have regular contact with it in connection with its purposes and that the personal data are not disclosed outside that body without the consent of the data subjects;

e) the processing concerns personal data which the data subject has made public;

f) the processing is necessary for the establishment, exercise or defense of legal claims or whenever courts are acting in their judicial capacity;

g) the processing is necessary for reasons of substantial public interest, based on Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection and provide for suitable and specific measures to safeguard the fundamental rights and interests of the data subject;

h) the processing is necessary for purposes of preventive or occupational medicine, for the assessment of the working capacity of the employee, for medical diagnosis, for the provision of health or social care or treatment, or for the management of health or social care systems and services, based on Union or Member State law or pursuant to a contract with a health professional and without prejudice to the conditions and safeguards referred to in paragraph 3;

i) the processing is necessary for reasons of public interest in the area of public health, such as protecting against serious cross-border threats to health, or ensuring high standards of quality and safety of health care and of medicinal products or medical devices, based on Union or Member State law which provides for suitable and specific measures to safeguard the rights and freedoms of the data subject, in particular the confidentiality of health;

j) the processing is necessary for archiving purposes in the public interest, for scientific or historical research purposes or for statistical purposes, in accordance with Article 89, paragraph 1, based on Union or Member State law, which must be proportionate to the aim pursued, respect the essence of the right to data protection and provide for suitable and specific measures to safeguard the fundamental rights and interests of the data subject.

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3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h), when such processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union Law or the laws of the Member States or with the rules established by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union Law or the laws of the Member States or the rules established by the competent national authorities.

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or data related to health.” (The underlining is ours)

V

Breach of Article 9 of the GDPR

1. Processing of health data.

The respondent is held responsible for having carried out processing of specially protected data - health data - that violates Article 9.1 of the GDPR.

According to Article 4.15 of the GDPR, health data is defined as “personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about their health status.”

It has been established that the respondent publicly disclosed on the social network Google Maps - in response to a comment made by the claimant on that social network regarding the pharmacy - the name of the medication and the dosage prescribed in the prescription presented when the claimant visited their establishment.

The respondent denies having processed data of this special category and argues that it is not possible to assert that the claimant was the recipient of the medication prescribed in the prescription shown when they visited the pharmacy on February 1, 2023.

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Regardless of the fact that the claimant seems to have acknowledged through the social network, in their response to the pharmacist's comment, that the medication was indeed for them - stating that “according to data protection regulations, a pharmacy cannot publish that I am using a certain medication” - we must add that, in the event that the recipient of the medication prescribed in the prescription was not the claimant, but someone in their environment, that person “could be identified” (“identifiable person”). This is because, following the events, given that access to the social network Google Maps and the comments included therein linked to establishments, in this case to the pharmacy, is free, and since the claimant's identity was identifiable on the social network through their photograph, as well as by their first and last name, a public connection has been created and disseminated between the claimant and the medication in question.

2. General prohibition on processing health data and exceptions.

Article 9.1 of the GDPR generally prohibits the processing of special category data, including those related to health. However, paragraph 2 of the provision introduces ten exceptions, ten scenarios in which the prohibition on processing may be lifted if any of them apply.

Regarding the scope of the exceptions set out in Article 9.2 of the GDPR, we must point out that, in most of them, their application requires the presence of two elements:

i. That the processing is “necessary” in relation to its specific purpose. This element is included in the description of all the circumstances of Article 9.2 GDPR, except for those contemplated in paragraphs a), d), and e).

Well, the term “necessity” has its own and independent meaning in Community Law. The Court of Justice of the European Union considers it to be an “autonomous concept of Community Law” (CJEU Judgment of 16/12/2008, case C-524/2006, paragraph 52) and the European Court of Human Rights

states that the “adjective necessary is not synonymous with ‘indispensable’ nor does it have the flexibility of the expressions ‘admissible,’ ‘ordinary,’ ‘useful,’ ‘reasonable,’ or ‘desirable’” (paragraph 97 of the ECtHR Judgment of 25/03/1983).

ii. That the processing, for the specific purpose referred to in each of the scenarios of Article 9.2 of the GDPR, is expressly authorized by a provision of internal or Union law. This requirement is included in all scenarios of the

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Article 9.2 of the GDPR with the exception of the circumstances set forth in paragraphs c), d), e), and f).

After examining the exceptions of Article 9.2 of the GDPR that lift the general prohibition of Article 9.1 of the GDPR, we conclude that, in the case examined, none of those contemplated by the provision apply.

- The consent of the claimant is obviously not present, paragraph a) of Article 9.2 of the GDPR.
- The processing of health data that has been carried out was also not necessary for the respondent to comply with obligations or exercise specific rights, nor is there a legal norm in domestic law or EU law that supports the processing we are analyzing (paragraph b).
- Likewise, it was not necessary for the protection of vital interests, either of the data subject or of third parties, to include in the response to a comment on a social network the data relating to the name and dosage of the medication (paragraph c).
- The exceptions in paragraphs e) - relating to data that the data subject has manifestly made public - and f) - the processing necessary for the formulation or exercise of claims - cannot apply either.
- The general prohibition on processing health data cannot be lifted by paragraph g), as it refers to processing necessary for reasons of "essential public interest" provided for in a norm of domestic law or EU law, which also establishes adequate measures for the protection of the rights of the data subject.
- The circumstance set forth in paragraph h) is also inapplicable, as it again requires, in addition to a specific purpose (among others, preventive medicine), the necessity of the processing, the enabling of the processing carried out here through a norm of domestic law or EU law, and that it has been carried out by a professional subject to the obligation of professional secrecy.
- The circumstance in paragraph j) is not applicable, as it refers to processing carried out for specific purposes that are not relevant here (for public interest archiving, scientific or historical research purposes, or statistical purposes) and requires that the processing be supported by a norm of domestic law or EU law and that the processing authorized by the norm be proportional to the objective pursued, essentially respecting the right to data protection and establishing adequate measures to protect the interests and fundamental rights of the data subject.

Finally, we will make a particular mention of the circumstance provided for in paragraph i) of Article 9.2:

“i) the processing is necessary for reasons of public interest in the field of public health, such as the protection against serious cross-border threats to health, or to ensure high levels of quality and safety of healthcare and of medicines or medical products, based on Union law or the laws of the Member States that establish adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy.” (The underlining is ours)

The reason for analyzing the circumstance of Article 9.2.i) of the GDPR is that the respondent has claimed that they acted “in the interest of public health.” Thus, they have stated:

“Therefore, although it is true that I should have refrained from that comment, I must say that I thought I had no other means to hinder the irregular circulation of a medication - thus, I acted in the interest of public health - given my inability to file a complaint with the police, which is what I would have done if I could have confirmed the irregularity of the prescription, which I could not do as Mr. [the claimant] took it in that manner.” (The underlining is ours)

Regarding this issue - the alleged application of the circumstance in paragraph i) of Article 9.2 of the

GDPR to the case examined - we must indicate that there is no norm of domestic law or EU law that enables the respondent for the processing of health data as they have carried out.

It is also added that another of the elements that make up the exception described in paragraph i) of Article 9.2 GDPR, to which we refer, is also lacking: on the occasion of the processing carried out, the respondent did not adopt any measures that guaranteed the right to the protection of the personal data of the affected party; on the contrary, in this case, the respondent would have violated the duty of professional secrecy that pertains to them.

The "Code of Ethics of the Pharmaceutical Profession – 2023," published by the General Council of Pharmaceutical Colleges, in its Article 20, "Professional Secrecy," provides:

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"The personal information that the pharmacist knows as a result of the performance of their professional duties is subject to the duty of professional secrecy. The professional secrecy obligation applies to all pharmacists in all their actions, regardless of their mode of practice.

The duty of professional secrecy may only be waived by the express and unequivocal consent of the interested party, by court order, or in compliance with the duties of communication or reporting in any of the cases provided for by the legislation, under the conditions established therein. Exceptionally, this duty may also be waived when the life or fundamental rights of another person or persons are at risk, which should prevail over the duty of professional secrecy.

The pharmacist shall ensure that their collaborators strictly adhere to the duty of professional secrecy. The death of the patient or user does not release the pharmacist from the obligations of professional secrecy." (The underlining is ours)

It seems appropriate to bring to attention Royal Decree 1718/2010, of December 17, "on medical prescriptions and dispensing orders," issued in development of articles 19.6 and 77.6 and 8 of Law 29/2006, of July 26, on guarantees and rational use of medications and health products, and under the exclusive competencies attributed to the State by article 149.1.16 of the Constitution regarding legislation on pharmaceutical products and the bases for the general coordination of health. Article 19, "Data protection in medical prescriptions and hospital dispensing orders," establishes:

"1. In the procedures to which medical prescriptions are subjected [...] the confidentiality of medical and pharmaceutical assistance, the personal and family privacy of citizens, and the protection of their personal data must be guaranteed, in accordance with the specific applicable regulations. To this end, security measures provided for in Organic Law 15/1999, of December 13, on the protection of personal data and its implementing regulations will be implemented in the processing of data."

The established facts prove that the defendant party processed specially protected data - health data - without any of the circumstances contemplated in section 2 of article 9 of the GDPR that lift the general prohibition on processing such data. Therefore, the processing of health data carried out by the defendant party constitutes a violation of article 9.1 of the GDPR.

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VI

Classification and statute of limitations

The infringement of article 9 of the GDPR for which the defendant party is held responsible, manifested in having processed specially protected data - health data - without any of the reasons contemplated in article 9.2 of the GDPR that allow lifting the general prohibition on processing such data, is classified in article 83.5.a) of the GDPR, which establishes:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with

administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under articles 5, 6, 7, and 9; [...]"

For the sole purpose of determining the statute of limitations, the LOPDGDD states in its article 72, under the heading "Infringements considered very serious":

"1. Based on what is established in article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

[...]

e) The processing of personal data of the categories referred to in article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in article 9 of this organic law being present. [...]"

VI

Unfulfilled obligation of article 5.1.c) of the GDPR

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1. All processing of personal data must respect the principles governing the fundamental right to data protection established in Article 5 of the GDPR, including the principle of data minimization (Article 5.1.c of the GDPR).

The respondent is held responsible for a violation of the principle of "data minimization" according to which "Personal data shall be: [...] c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed" (Article 5.1.c).

It is evidenced in the file that the respondent responded to a comment about the pharmacy that the claimant made through the social network Google Maps, providing the name of the medication and the dosage prescribed by the medical prescription presented when the claimant visited the pharmacy. Article 5.1.c) of the GDPR states that the data processed must be "adequate and relevant" and "limited to what is necessary" in connection with "the purposes" that the processing operation pursues.

The suitability of processing certain personal data or the necessity of processing referred to by the data minimization principle is inevitably connected with the purpose or purposes that the data controller seeks to satisfy with their processing operation. It is also necessary to take into account that the GDPR requires that the purpose of the processing be legitimate, that is, compliant with the legal framework (Article 5.1.b).

Based on these premises, it is appropriate to examine the context in which the personal data concerning the complaint at hand were collected and disseminated by the respondent.

The respondent, by reading the medical prescription presented by the claimant, had access, with a legitimate purpose - to dispense the medication - to the name and dosage of the medication prescribed therein. This, in turn, obliged him, according to sectoral regulations, to verify that the presented prescription met the regulatory requirements.

At this point, we must recall that the respondent, by virtue of being a pharmacist, is bound by professional secrecy. And that R.D. 1718/2010 "on medical prescriptions and dispensing orders" establishes in its Article 19, section 1, under the heading "Data protection in medical prescriptions and hospital dispensing orders," that "In the procedures to which medical prescriptions are subjected [...] the confidentiality of medical and pharmaceutical assistance, the personal and family privacy of citizens, and the protection of their personal data must be guaranteed, in accordance with the specific applicable regulations." (The emphasis is ours)

On the other hand, the context in which the respondent publicly discloses the name and dosage of the medication requested by the claimant is that of a social network through which individuals who freely choose to participate make evaluations about establishments.

Thus, the respondent, in order to respond through the social network Google Maps to a negative comment from the claimant about the pharmacy and its staff, carries out processing of data to which he had access in the exercise of his professional activity and regarding which he has an obligation to maintain secrecy.

The explanation initially put forth by the respondent to justify his behavior, that he acted with a public interest purpose in defense of public health, cannot prosper either, as he sought to prevent the circulation of a prescription that, in his opinion, showed signs of not being legitimate, although in his second submission - allegations to the initiation agreement - he acknowledges that it was a "mistake" to "attempt to prevent the circulation of an apparently illegitimate prescription by such means."

In this regard, Article 15, "Actions of the pharmacist in the dispensing of prescriptions," paragraph 2, of R.D. 1718/2010, establishes:

"4. The pharmacist, when reasonable doubts arise about the authenticity or validity of the presented medical prescription, shall not dispense the medications requested by patients or users, unless he can verify the legitimacy of the prescription; otherwise, he shall inform the competent health administration to determine the existence of possible administrative or criminal infringements." (The emphasis is ours)

In summary, the processing that the respondent made of the data relating to the name and dosage of the medication prescribed in the prescription - to which he had access by virtue of his professional activity - that he published on the social network in which he freely and voluntarily decided to participate was neither pertinent nor adequate to fulfill that purpose.

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This Agency considers that the conduct of the respondent, which is duly evidenced in the procedure, constitutes a disproportionate interference with the right to data protection and represents an excessive processing of personal data that violates the principle of data minimization established in Article 5.1.c) of the GDPR.

VII

Classification of the infringement and statute of limitations

The conduct of the respondent, manifested in having made public on Google Maps the name and dosage of the medication prescribed in the prescription presented by the complainant, violates the principle of data minimization provided for in Article 5.1.c) of the GDPR. This infringement is classified in Article 83.5.a) of the GDPR, which establishes:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; [...]"

The LOPDGDD sets the statute of limitations for the infringement of Article 5.1.c) of the GDPR. Article 72.1 of the LOPDGDD, "Very Serious Infringements," provides:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein, and in particular, the following: a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

[...]"

VII

Warning

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It has been evidenced in the file that the respondent incurred in two infringements of Articles 9.1 GDPR and 5.1.c) GDPR. As stated, when responding through the Google Maps application to the comment that the complainant had published on the social network about the pharmacy, it processed a data point—the name of the medication and its dosage prescribed in the medical prescription shown by the complainant—that was not necessary, appropriate, or relevant for that purpose. And, since the processed data is health data, a specially protected data, none of the circumstances set out in Article 9.2 of the GDPR that allow for lifting the general prohibition on processing such data were present. The GDPR establishes in its Article 58, “Powers”:

“Each supervisory authority shall have all of the following corrective powers:

[...]

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

[...]”

For its part, Article 64 of the LOPDGDD, which regulates the “Initiation of the procedure and duration,” provides:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within a specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After that period, it shall expire, and consequently, the proceedings shall be archived.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case.” (The underlining is ours)

Given the circumstances surrounding the facts subject to this procedure, the Agency considers that in this case it is appropriate to issue a warning to the respondent as the party responsible for the infringements of Articles 9.1 and 5.c) of the GDPR.

VIII

Corrective measures

Article 58.2 d) of the GDPR establishes that each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame [...]”.

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In the initiation agreement of the procedure, it was indicated that, if the violations of Articles 9.1 and 5.1.c) of the GDPR were confirmed, appropriate measures could be imposed on the respondent to adjust their actions to data protection regulations, in accordance with the provisions of Article 58.2 d). In particular, it was noted in this agreement that the resolution adopted could require the responsible party to notify the Agency of the adoption of the following measures within a period of ten (10) calendar days, counted from the date the sanctioning resolution became enforceable:

- Carry out the deletion of mentions of the name and dosage of the medication that were included in the comment published on Google Maps.
- That, in the event that it was not possible to delete the indicated information, they should proceed to completely remove the comment published on Google Maps.

It was also warned in the initiation agreement that failure to comply with the possible order to adopt

measures imposed in the resolution of the procedure could be considered an administrative violation, in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct could lead to the opening of a further sanctioning administrative procedure.

In their allegations to the opening agreement, the respondent states that they fully agree on the necessity for the comment published on Google Maps "to cease being accessible to third parties, hence currently [...] it is no longer accessible by my decision." They provide as evidence a screenshot of the Google Maps application related to the pharmacy, which shows that they have deleted the comment in which they informed about the name of the medication.

Furthermore, this Agency has verified that on the social network page related to the pharmacy, the comment made by the respondent on February 1, 2023, in which they published the name of the medication and the dosage, has disappeared, and that currently, in the space designated for comments of "Pharmacy" "Owner," it only states "Respond publicly."

In light of these circumstances, given that the corrective measure provided in the opening agreement has been fulfilled as stipulated therein, its imposition in this resolution is not warranted.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for the violation of the following provisions of the GDPR:

1. Article 9.1 of the GDPR, infringement classified in Article 83.5.a) of the GDPR.
2. Article 5.1.c) of the GDPR, infringement classified in Article 83.5.a) of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or, directly, an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension terminated.

1403-16012024
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